

Regeneration and Growth Directorate

Development Management - London Borough of Newham London



Delegated Report Prior Approval

Change of Use – Part 3 Class M

**Application reference
number:**

240947

Site Address:

[REDACTED]
[REDACTED]
[REDACTED]

Ward:

William Morris

Proposal:

Prior Approval application for conversion of floorspace at first and second floor level, and entrance hall and staircase at ground floor level to one self-contained residential unit (1x3-bed) (Use Class C4).

Case Officer:

Tia Olivo

**Neighbouring
properties**

• [REDACTED]
[REDACTED],

consulted

E17 6EU

- Ground Floor, Rear and First and Second Floor Flat 211 Forest Road, Walthamstow, London, E17 6HE
- 213a,b Forest Road, Walthamstow, London, E17 6HE
- 215 and 215A Forest Road, Walthamstow, London, E17 6HE
- Ground Floor, Rear Flat, and First Floor Flat 217 Forest Road, Walthamstow, London, E17 6HE
- 219 and 219A Forest Road, Walthamstow, London, E17 6HE
- 1 Century Road, Walthamstow, London, E17 6JA
- First Floor Flat, 148 - 148a Forest Road, Walthamstow, London, E17 6JQ
- Ground Floor, 148 - 148a Forest Road, Walthamstow, London, E17 6JQ
- 150-164 (even numbers) Forest Road, Walthamstow, London, E17 6JQ

Date of

22nd April 2024

consultation**Consultations**

21st May 2024

expiry date**Responses**

A total of 1 response was

received received.
Recommendation Prior Approval Not Approved.

Date of Report: 28th May 2024
Team Leader: KBD 4/6/2024
Team Leader /Head of DM: MC 5/6//2024

PROPOSAL

Prior Approval application for conversion of floorspace at first and second floor level, and entrance hall and staircase at ground floor level to one self-contained residential unit (1x2-bed) (Use Class C3).

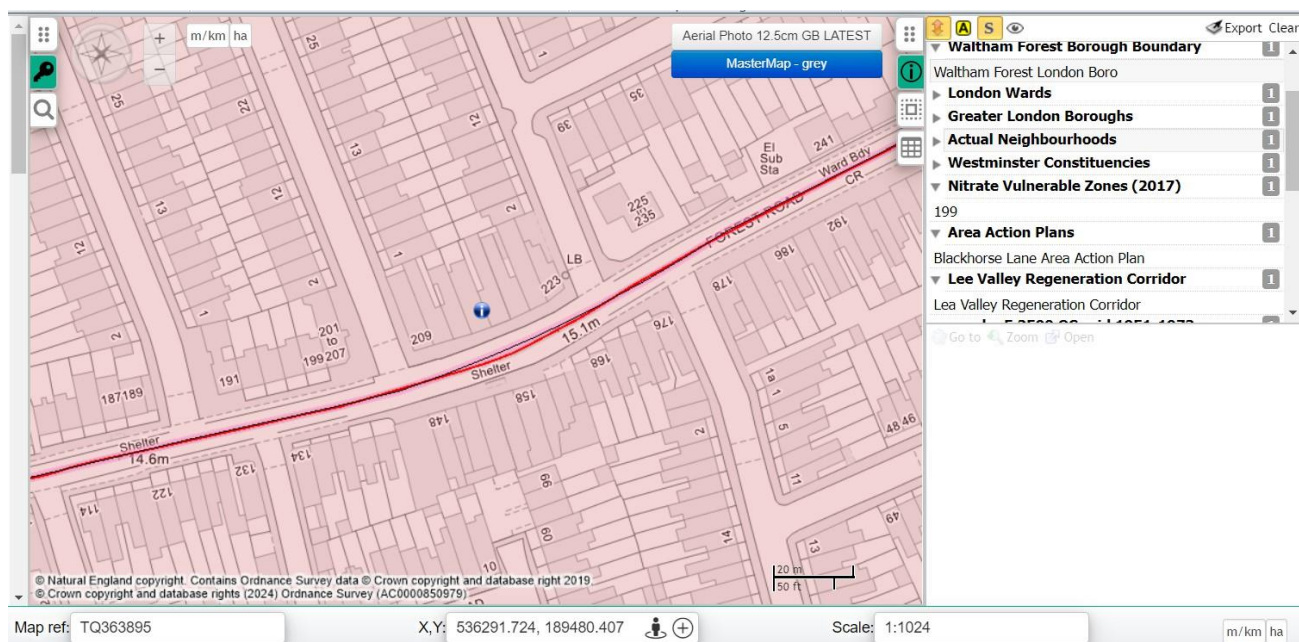
The Town and Country Planning (General Permitted Development) (England) Order 2015 (as amended) - Schedule 2, Part 3, Class M is an application determine if prior approval is required for a proposed: Change of Use from Takeaways, Betting Offices, Pay Day Loan Shops or Launderettes (Sui Generis Uses); or a Mixed Use combining use as a Dwellinghouse (Use Class C3) with a Betting Office, Pay Day Loan Shop or Launderette (Sui Generis Uses); to Dwellinghouses (Use Class C3), and for building operations reasonably necessary for the conversion.

SITE & SURROUNDINGS

The site at 215 Forest Road relates to a three-storey property which is in use as a takeaway on the the ground floor, and residential use on the first and second floors to provide a 5-bedroom flat.

There has been no planning permission sought for the residential use on the first and second floors.

The site is not in a Conservation Area, and is not Listed Building.



PLANNING HISTORY

- 830676 - *C.O.U FROM OFFICE ON GROUND FLOOR TO TAKE AWAY HOT FOOD SHOP*. Approved on the 01/01/2001.
- 840401 - *INTERNALLY ILLUMINATED FASCIA SIGN AND DOUBLE SIDED PROJECTING BOX SIGN*. Approved on the 01/01/2001.

CONSULTATION RESPONSES

There has been 1 response to the public consultation made in objection to the development.

The comment can be summarised as:

"The commercial lease contract finishes in September of 2027. During this period, I don't think the freehold should do anything about the building. Running the buisness and being able to live here would no longer be possible."

CONSIDERATION

1. Commencement of Development

The development has already commenced.

The property is already operating in a mixed use, as a takeaway and a dwellinghouse.

2. Amenity Adjoining Properties

The conversion of the first and second floors from 5-bedrooms to a 2-bedroom flat would not detrimentally impact the amenities of any adjoining properties in any harmful way. The reduction in the number of rooms is likely to reduce any existing impacts by way of noise from comings and goings and general living. As there are no proposed changes externally, there would be no impact by loss of light, creating a sense of enclosure or any privacy concerns.

In light of this, the development would have an acceptable impact on the amenity of the adjoining properties.

3. GPDO Requirements

In accordance with Part 3 Class M of The Town and Country Planning (General Permitted Development) (England) Order 2015 (as amended), Development is not permitted by Class M(a) where –

a. The building was not used for one of the uses referred to in Class M on the 20 th March 2013, or if the building was not in use on that date, when it was last in use.	compliant - The building is not in use as one of the uses specified under Class M (a)(i) as the building is in operation as a mixed use of a hot food takeaway and a dwellinghouse which is not a specified use. Part M (a)(i) specifies that development is only permitted whereby the building is in operation as one of the uses within (i) only, or for a mixed-use combining a dwellinghouse with either the uses of laundrette, a betting office, a pay day loan shop. Part M (A) (ii) excludes properties which are in a mixed use of a hot food take-	Not
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	away and a dwellinghouse to a change use to a dwellinghouse. The application also confirms that the building was not in use as one of the specified uses on or before the 20th March 2013 under the eligibility section. Therefore, the properties use does not comply with Class M.(a) (ii) and M.1 (a), as it was not in use as one of the uses specified on 20th March 2013 or since this date.
b. Permission to use the building for a use falling within Class A1 (shops) or A2 (financial and professional services) of that Schedule has been granted only by this Part;	Compliant.
c. The cumulative floor space of the existing building changed under Class M (a) exceeds 150 sq. metres	Compliant - The cumulative floor space of the existing building changed is 87m2.
d. The development (together with any previous development under Class M (a) would result in more than 150 sq.metres of floor space in the building having changed under Class M (a)	Compliant - There has been no previous development under Class M (a) and the changed part would not exceed 150m2.
(e) The development would result in the external dimensions of the building extending beyond the external dimensions of the existing building at any given point	Compliant - There are no proposed external changes to the building.
(f) The development consists of demolition (other than partial demolition which is reasonably necessary to convert the building to a	Compliant - There is no proposed partial demolition.

use falling within Class C3 (dwelling houses) of the Schedule to the Use Class Order	
No demolition works are proposed as part of this application.	Compliant - There is no proposed partial demolition.
(g) The building is –	Compliant -
(i) Not on article 2(3) land;	Not applicable to any of (i)-(v).
(ii) The site is not an SSSI	
(iii) The site is not or does not form part of a safety hazard area;	
(iv) The site does not form part of a military explosive storage area;	
(v) The building is not listed or a scheduled monument.	

Development is permitted subject to Class M.2 development conditions:

1. Before beginning the development, the developer shall apply to the local planning authority for a determination as to whether prior approval of the authority will be required as to –

a. Transport and highways impacts of the development

The application site is located within the Blackhorse Lane Controlled Parking Zone (CPZ) and accordingly it is recognised that the LPA require a 'car-free' development. The submitted information outlines that the development would be car-free, as the applicant would enter into a S106 agreement to ensure this if the prior approval were to be granted.

The waste would be collected by a sack waste system and thus would be acceptable to retain the existing strategy.

Subject to the completion of that legal agreement, the proposed conversion would not have any adverse transport impacts.

b. Contamination risks in relation to the building

No comments have been received from Environmental Health therefore the Officers assume that there are no comments to make.

c. Flooding risks in relation to the building

The building is not located within a Flood Zone. Furthermore, the plans would not worsen any flood risk in relation to the building.

d. Whether it is desirable for the building to change to a use falling within the C3 (dwelling house) of the Schedule to the Use Classes Order because of the impact of the change of use –

i. Adequate provision of services of that sort that may be provided by a building falling within Class A1 (shops) or, as the case may be A2 (financial services) of that Schedule, but only where there is a reasonable prospect of the building being used to provide such a service.

ii. (bb) where the building is located in a key shopping area, on the sustainability of that shopping area.

The ground floor use of the building as a takeaway is to remain the same as existing and therefore continue to provide an active, ground-floor frontage which can continue to support the sustainability of the shopping in this area.

iii. The design and external appearance of the building

There are no external changes proposed to the building and thus the design and external appearance of the building will remain the same.

CONCLUSION

Prior approval is not approved for 215 Forest Road as the building which is in a mixed use as a hot-food takeaway and a dwellinghouse is not a specified use under Class M (a)(ii), and therefore the building was not used for one of the uses referred to in Class M (a)(ii) on the 20th March 2013 or when it was last in use prior to that date and therefore fails to comply with Class M. (a)(ii) and M.1 (a).

Prior approval is NOT APPROVED.